

Present:

*Mr. Justice S M Kuddus Zaman*

*And*

*Mr. Justice A.K.M. Rabiul Islam*

**09.07.2024**

Mr. Motaher Hossain Saju with  
Mr. Mohammad Abu Sayem, Advocates  
....For the convict-appellant.  
Mr. Sujit Chatterjee, D.A.G. with  
Mr. Moududa Begum, A.A.G.  
Mr. Mirza Md. Soyeb Muhit, A.A.G.  
Mr. Mohammad Selim, A.A.G.  
Mr. Zahid Ahmed (Hero), A.A.G.  
....For the State

This is an application for bail in a pending appeal.

The convict-appellant has been convicted in Session Case No.121 of 2000 arising out of Kotwali Police Station Case No.60 dated 27.02.1996 corresponding to G.R. Case No.94 of 1996 convicting the appellant under Sections 302/34 of the Penal Code and sentencing him to suffer rigorous imprisonment for life and to pay a fine of Tk.6,000/- (six thousand) in default to suffer rigorous imprisonment for 6(six) months more.

Mr. Motaher Hossain Saju, learned Advocate for convict-appellant Nur Alam submits that the allegation leveled against the appellant was that he struck a dagger blow on the chest of victim

Khokon but the evidence of PW9 Dr. Golam Mostafa Khan who perform post-mortem examination of the dead body of victim Khokon shows that there were as many as 17 injuries on the person of above victim including 2 injuries on scalp. There was no allegation that the appellant struck above injuries on the scalp of victim Khokon. Two co-convicts and co-appellants persons namely Kabir and Taher gave confessions under Section 164 of the Code of Criminal Procedure but both of them have been granted bail by this Court. Besides co-accused Almas, Ibrahim, Jalal, Golam Hossain and Babu who stand on the same footing like the appellant have been granted bail by this Court.

The appellant has already served out for more than 3(three) years of above sentence and there is no likelihood of hearing of the appeal on merit soon.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State vehemently opposes the prayer for bail to the convict-appellant.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the record that the appellant was tried in absentia and he voluntarily surrendered to serve out above sentence on 24.10.2021.

PW2 Kamrul who claims to be an eye witness of the occurrence has stated that the appellant struck a dagger blow on the chest of victim Khokon. But the post-mortem report of the dead body of khokon and the evidence of PW9 Doctor Golam Mostafa Khan show that there were 17 marks of injury on the person of victim Khokon including 2 injuries on his scalp.

In this case 7 convicted co-accused persons including two convicts who made confessions have been granted bail by this Court earlier. There is no likelihood of hearing of the appeal on merit soon.

On consideration of above materials on record we are inclined to grant bail to the convict-appellant.

As such, the application for bail is allowed.

Let convict-appellant Nur Alam, son of Abdul Mozid Mia be enlarged on bail for a period of 01(one) year with condition that during above period the appellant shall prepare paper book out of the Court. The appellant shall also execute a bail

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bond to the satisfaction of the learned Additional  
Session Judge, 4<sup>th</sup> Court, Cumilla.

MD. MASUDUR RAHMAN  
BENCH OFFICER